

Shweta Vasudeva vs Mohit Kumar on 16 November, 2023

Neutral Citation No:=2023:PHHC:145

Neutral Citation No.: 2023:PHHC:145790

TA-1002-2023 (O&M)

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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

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TA-1002-2023 (O&M)
Decided on: 16.11.2023

Shweta Vasudeva

...Applicant/Petitioner

Versus

Mohit Kumar

....Respondent

CORAM: HON'BLE MR. JUSTICE SANJAY VASHISTH

Present: Mr. Raja Sharma, Advocate
for the Applicant/petitioner.

Mr. Tushar Gautam, Advocate
for the respondent.

SANJAY VASHISTH, J. (Oral)

Power of attorney on behalf of the respondent has been filed in the Court today. The same is taken on record. Registry is directed to tag the same at appropriate place in the paper-book.

1. Present transfer application, under Section 24 CPC, has been filed by the petitioner-wife, for seeking transfer of the petition, bearing No. HMA/542/2023, filed by the respondent-husband, under Section 13 (1) (ia)(ib) of the Hindu Marriage Act, 1955, titled as "Mohit Kumar Vs. Shweta Vasudeva and another", presently pending in the Court of Learned Principal Judge, Family Court, Ambala, to any Court of competent jurisdiction at Faridabad.

2. The present transfer petition has been filed, inter alia, on the 1 of 7 Neutral Citation No:=2023:PHHC:145790 Neutral Citation No.: 2023:PHHC:145790 TA-1002-2023 (O&M) -2-

following grounds:-

- i) Petitioner-wife and respondent-husband got married on 21.08.2010, at Ambala, according to the Hindu rites and ceremonies.
 - ii) Out of the said wedlock, one male child, namely, Medhaansh Arora was born, now aged about 10 years, who is studying in a School at Faridabad and staying/residing with the petitioner.
 - iii) Petitioner-wife is working as Branch Manager, Kotak Mahindra Bank, Faridabad, while the respondent-husband is working as Team Leader in a Private Company.
 - iv) Petitioner-wife has filed a petition under Section 125 Cr.P.C. for seeking maintenance, which is pending adjudication before the Court of learned Principal Judge, Family Court, Faridabad for 19.12.2023. Petitioner-wife has also instituted a complaint under the Protection of Women from Domestic Violence Act, which is also pending before the Court of learned Judicial Magistrate First Class, Faridabad for 19.12.2023. One partition suit was also filed by the petitioner-wife, which is stated to be pending before learned Civil Judge, Gautam Budh Nagar, Noida, UP for 01.12.2023.
 - v) Moreover, respondent-husband himself has filed a petition bearing GW/119/2023, under Guardians and Wards Act before learned Additional Principal Judge, Family Court, Faridabad.
 - vi) Traveling from Ambala to Faridabad, is a distance of around 240 Kms (one side), which takes around 5 hours, thus, causing extreme hardships to the petitioner-wife as well as the minor child.
3. On the other hand, learned counsel for the respondent submits that respondent is a person with limited means and as per the allegations leveled in the divorce petition, he has strong apprehension of being harmed by the 2 of 7 Neutral Citation No:=2023:PHHC:145790 Neutral Citation No.: 2023:PHHC:145790 TA-1002-2023 (O&M) -3- family members of the petitioner or the persons known to them, if he visits ever to Faridabad.
4. However, there is no denial by the respondent that already three cases are pending in the Courts at Faridabad .
5. I have heard learned counsel for the parties and gone through the material available on record.
6. In the facts and circumstances similar to the present case, in paragraph Nos. 9 & 10 of the judgment rendered in the case of N.C.V. Aishwarya v. A.S. Saravana Karthik Sha, AIR 2022 SC 4318, Hon'ble the Apex Court has held as under:

"9. The cardinal principle for exercise of power under section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural

pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socioeconomic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer.

10. Further, when two or more proceedings are pending in different Courts between the same parties which raise common question of fact and law, and when the decisions in the cases are interdependent, it is desirable that they should be tried together by the same Judge so as to avoid multiplicity in trial of the same issues and conflict of decisions."

7. Further, Hon'ble the Apex Court in *Rajani Kishor Pradeshi v. Kishor Babulal Pardeshi*, (2005) 12 SCC 237, has observed that "while deciding the transfer application, the Courts are required to give more 3 of 7 Neutral Citation No:=2023:PHHC:145790 Neutral Citation No.: 2023:PHHC:145790 TA-1002-2023 (O&M) -4- weightage and consideration to the convenience of the female litigants and transfer of legal proceedings from one court to another should ordinary be allowed, taking into consideration their convenience and the Courts should desist from putting female litigants under undue hardships."

8. However, to avoid any misuse of the lenient view by the female litigants, Hon'ble the Apex Court in *Anindita Das v. Srijit Das*, (2006) 9 SCC 197, has also cautioned that the Courts should ensure that such leniency given to the female litigants should not be misused. Relevant Paragraph 3 of the aforesaid judgment says as under:

"3. Even otherwise, it must be seen that at one stage this Court was showing leniency to ladies. But since then it has been found that a large number of transfer petitions are filed by women taking advantage of the leniency taken by this Court. On an average at least 10 to 15 transfer petitions are on Board of each Court on each admission day. It is, therefore, clear that leniency of this Court is being misused by the women."

9. Thus, this Court is of the view that while adjudicating a transfer petition initiated by the wife in the context of a matrimonial dispute, the Court must take into account a comprehensive array of the following factors:-

- (a) Economic condition and earning capacity of the parties, i.e. husband and wife;
- (b) Social standing of the wife and her dependency on her parents;
- (c) Custody of any minor children involved;
- (d) Education of the children, if any;
- (e) Physical well-being of both, i.e. wife and husband;
- (f) Pending litigation(s) between the parties including

criminal cases, if any;

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(h) Accessibility of the location from where the wife resides to the court where the case is pending;

(i) Availability of convenient commuting options Undoubtedly, only a harmonious consideration of all these vital aspects would ensure a just and equitable decision in such cases.

10. Thus, applying the principles of law, laid down by Hon'ble the Apex Court in N.C.V Aishwarya's case (supra), Rajani Kishor's case (supra) and Anindita Das's case (supra), this Court deems it appropriate to allow the present petition, by issuing following directions:

(i) Petition filed by respondent - husband under Section 13 (1) (ia)(ib) of the Hindu Marriage Act, 1955, bearing No. HMA/542/2023, titled as "Mohit Kumar Vs. Shweta Vasudeva and another", pending in the Court of Learned Principal Judge, Family Court, Ambala, is transferred to a Court of competent jurisdiction within Sessions Division Faridabad.

(ii) Learned District Judge, Ambala, is directed to transfer complete record pertaining to the aforesaid case to learned District Judge, Faridabad, by directing both the sides to appear before the Court of learned District Judge, Faridabad, on a particular date to be fixed by him, for further proceedings.

(iii) On receipt of record of the case, learned District Judge, Faridabad, will either keep the said case in his own Court or to assign the same to a Court having competent jurisdiction within Sessions Division Faridabad, to try the same.

(iv) The concerned Court at Faridabad, shall diligently strive to amicably resolve the marital discord between the parties by referring the matter to the Mediation and Conciliation Centre.

(v) After transfer at Faridabad, the concerned Court will accommodate the parties to the lis with at least one date in a 5 of 7 Neutral Citation No:=2023:PHHC:145790
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calendar month.

11. However, liberty is granted to the respondent-husband to get the present transfer application/petition revived, if so advised, to contest the same, subject to the conditions that:

(i) Petitioner-wife has concealed any material fact or aspect while filing the present transfer application/petition, with an intention to mislead this Court for seeking transfer of the case.

OR

(ii) Respondent-husband is suffering from any substantial physical/mental disability or ailment.

OR

(iii) Respondent-husband will clear all arrears of maintenance amount, if any, in terms of a petition filed by the petitioner-wife either under Section 125 Cr.P.C. or Section 12 of the Domestic Violence Act or Section 24 of the Hindu Marriage Act, or under any other law.

AND

(iv) Respondent-husband will file an affidavit, giving an undertaking to pay Rs.1,000/- per day, to the petitioner-

wife for attending the Court proceedings at Ambala, on each and every date of hearing of the case.

AND

(v) Alongwith the application for revival of the present transfer application/petition, respondent-husband will furnish a demand draft of Rs.25,000/- in favour of petitioner-wife, towards the litigation expenses, i.e. to pursue the case at Ambala.

12. Since the present transfer application/petition is being disposed of without issuing notice to the respondent, in order to ensure appearance of 6 of 7 Neutral Citation No:=2023:PHHC:145790 Neutral Citation No.: 2023:PHHC:145790 TA-1002-2023 (O&M) -7- the parties before learned District Judge, Faridabad, as per the direction of learned District Judge, Ambala, it is also directed that a copy of this order be sent to the respondent through registered post, besides sending copies of this order to learned District Judges concerned, through email as well.

Petitioner through her counsel, is also directed to ensure her appearance accordingly.

Petition stands disposed of in above terms. Pending misc. application(s), if any, also stands disposed of.

(SANJAY VASHISTH)
JUDGE

16.11.2023

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Whether speaking/reasoned: Yes/No

Whether Reportable: Yes/No

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